Counsel Note — Autonomous AI, Founding Data & Tier 1 Benefit-Year Timing (2026-09-05)

For the attorney. Documents three product/infra changes made on 2026-09-05 and confirms they were built to preserve every existing constraint. Nothing here creates a new money-movement, credit, or identity surface. Not legal advice — the confirm-points at the end are for counsel.

What was added

1. **Comprehensive FIRST-PARTY founding data collection** (`founding-data.ts` , `foundingSignalRecord` , `foundingDataScope`). The pre-revenue / founding panel's activity is collected comprehensively as first-party product-analytics signals (`FoundingDataSignal`) for the AI model to learn from. It reuses only already-disclosed first-party categories (profile, preferences, interactions, feature use, surveys, engagement, feedback, referrals, closed-loop transactions, session telemetry, support). A **hard guard** (`FOUNDING_DATA_FIRST_PARTY_ONLY` , on) refuses any category not marked first-party in the manifest at write time, and collection is **consent-gated** (founding/PMF consent on file). No new data category; no third-party sharing; feeds the internal model only.

2. **Full autonomy for NON-sensitive AI functions, auto-applying once live** (`ai-autonomy.ts` , owner default in `autonomy-kernel.ts` , gate in `optimizer.ts`). Every non-sensitive (auto_ok) domain runs at full autonomy by owner delegation. Before launch the AI only collects/learns/recommends; once `SITE_LIVE` is on it auto-applies non-sensitive changes (audited, bounded, outcome-tracked, auto-reverted on regression). A model target date (`AI_MODEL_TARGET_DATE` , 2026-12-31) and an admin readiness read (`aiModelReadiness`) were added.

3. **Tier 1: no fill deadline; benefit year anchored to the 200k-user milestone** (`founding-advertiser.ts` , `foundingProgramMilestone`). The founding offer stays open until the availability cap is reached, with no time limit. A Tier 1 member's 100%-keep benefit year starts on the date the premium-user milestone (200,000) is reached — not at signup; members who join later start from their join date. The reached-at date is stamped once, idempotently, the first time the gate is met.

4. **Owner use-of-funds commitment (proposed — NOT yet in live terms).** The owner wishes to commit that founding revenue will be applied **only** toward completing the offer — i.e., reaching the 200,000-user milestone the pre-revenue offer is built around — and not spent on anything else. This is documented here as a **statement of intent for counsel's review** (draft wording in the appendix). It is deliberately **not wired into any member-facing or live term** pending counsel's decision on (a) whether to make it a binding covenant or a non-binding statement of current intent, and (b) how it interacts with the funds model (`FOUNDING_FUNDS_MODEL` : presale / escrow / hybrid), since earmarking funds for a specific purpose can shift the posture toward escrow/custodial treatment. **(Superseded — see confirm-point 5, revised 2026-09-13, for the current two-phase use-of-funds posture.)**

Guardrails preserved (the point of this note)

- **The closed loop is untouched.** No feature here books money to a user, creates a cash-equivalent, or moves value user-to-user. Users still receive only non-cashable Site Cash; only businesses are paid real money.
- **Permanent gates stay permanent.** The Autonomy Kernel forces every money / identity / legal / risk domain (payouts, refunds, billing changes, KYC/tax, disputes, account actions, legal & public claims) to "manual" regardless of the new autonomy default; the optimizer's `COMPLIANCE_DENYLIST` + sensitive/price checks keep money/price/legal knobs on the human-approval path; and the global kill switch overrides everything. The autonomy change can only make the AI *more* conservative than before launch — it never widens what may be automated in the regulated domains.
- **No new data category, no new sharing.** The first-party hard guard refuses anything outside the disclosed manifest; `FoundingDataSignal` is aggregate first-party product analytics of already-disclosed signals, consent-gated, fed to the internal model only. Privacy posture unchanged.
- **No revenue/ROI/return promise.** The founding value framing and value stacks are unchanged. The benefit year is a **term definition** (when the 100%-keep window runs), not a financial return; anchoring it to the milestone does not tie any number to an advertiser's sales.
- **Members are never auto-charged.** The member shortfall charge remains coded off. Nothing in the term-timing change bills or debits a member.

For counsel to confirm

1. That collecting the founding panel's first-party activity comprehensively — restricted by the hard guard to already-disclosed first-party categories, consent-gated, internal-only, no third-party sharing — is covered by the current privacy policy and disclosures (no new data category is introduced).
2. That delegating full autonomy to the non-sensitive domains — with money, identity, legal, pricing, and tier changes held to permanent human/counsel gates and a kill switch over all of it, and with auto-apply suppressed until go-live — introduces no new autonomy concern beyond the already-reviewed optimizer / Autonomy Kernel model.
3. **Tier 1 "no time limit to fill":** that removing a fill deadline is acceptable under the chosen funds model. Note the interaction with escrow/hybrid: if founding funds are escrowed/refundable pending the milestone and there is no deadline by which the milestone must be met, there is no automatic refund trigger — please confirm the refund path (or that the non-refundable presale model, where this is moot, is the one in force). This is the one item that materially interacts with consumer-protection/escrow terms.
4. **Benefit-year timing:** that starting each Tier 1 member's 100%-keep year at the 200k-user milestone rather than at signup — during which the member keeps their in-window rate but the clock has not begun — is consistent with the founding-offer terms and disclosures the member accepts, and with any auto-renewal / term-length representations.
5. **Use-of-funds posture (REVISED 2026-09-13 — TWO-PHASE):** the owner wants the letter to state that founding contributions are **non-refundable** and are **directed to user acquisition until BOTH** the **200,000-user prelaunch milestone** and an **additional 200,000 regular users** (the audience founders advertise to; ~400,000 total) are reached; **once both milestones are met, the funds are the owner's to allocate at discretion for any lawful business purpose** (a purchase of advertising/membership, **not** funds held in trust). This supersedes both the earlier "spent only on completing the offer" draft and the 2026-09-05 "discretion once the offer is filled" draft. Please confirm this two-phase posture is consistent with the funds model (`FOUNDING_FUNDS_MODEL`) and with every refund/escrow representation the buyer sees, and note that earmarking funds to user acquisition during Phase 1 may shift that phase toward escrow/custodial treatment — reconcile accordingly.
6. **Post-year deliverable + audience figures (REVISED 2026-09-13):** the letter adds two forward statements — (a) the founding funds are **directed to acquiring the 200,000 prelaunch users plus an additional 200,000 regular users (~400,000 total)** for founders to advertise to, after which the funds are at the owner's discretion; and (b) each founding business receives a **free additional year of marketing access to that audience** as part of the offer. Please confirm the framing needed to stay within the no-performance-guarantee posture: the free marketing year is a concrete **new delivery obligation** (it must be added to the value stack / delivery guarantee and actually honored), and the **user figures should read as goals/targets, not guaranteed counts of reachable users**, so they aren't an audience-size or results guarantee. Confirm the interaction with the existing capacity-paced, "advertising delivered — not audience/results/ROI" disclosure, and whether the free-marketing-year benefit needs its own delivery-guarantee wording.

Appendix — DRAFT use-of-funds statement of intent (for counsel review; NOT live)

The following is draft wording only. It is not published in any member-facing document, terms of service, or marketing surface, and must not be used until counsel has reviewed it and decided whether it should be a binding covenant or a non-binding statement of intent, and finalized the language. Two variants are offered so counsel can choose the posture.

Variant A — statement of current intent (softer):

> "Founding contributions are a non-refundable purchase of advertising and membership — not funds held in trust. Until we have (1) reached the 200,000-user prelaunch milestone and (2) acquired an additional 200,000 regular users for founding businesses to advertise to (about 400,000 users in total), we direct these funds to acquiring those users and building that audience. Once both milestones are met, we may use these funds at our discretion for any lawful business purpose. As part of this offer we also give each founding business an additional year of marketing access to the platform's user audience at no extra charge. These statements describe our plans and the value we intend to deliver; the user figures are goals, and nothing here guarantees any specific audience size, reach, result, revenue, or financial return."

Variant B — commitment/covenant (stronger; only if counsel advises it can be honored and evidenced):

> "Founding contributions are non-refundable. Until we have reached the 200,000-user prelaunch milestone and acquired a further 200,000 regular users for founding businesses to advertise to (about 400,000 users in total), these funds are directed to acquiring those users and building that audience; once both milestones are met, they are ours to use at our discretion for any lawful business purpose. As part of the founding offer we commit to provide each founding business a free additional year of marketing access to the platform's user audience following the founding year. The user figures are goals, not guaranteed counts of reachable users, and nothing here is a promise of sales, revenue, profit, or investment return."

Open drafting questions for counsel, tied to confirm-points 5–6: (a) the two-phase "non-refundable, directed to user acquisition until the 200,000 prelaunch + 200,000 additional users are reached, then owner's discretion for any lawful business purpose" posture vs. the funds model and any refund/escrow language it reverses — including whether Phase 1 earmarking leans toward escrow/custodial treatment; (b) framing the user figures as goals, not guaranteed reachable-audience counts; (c) whether the free additional marketing year needs its own delivery-guarantee wording and a place in the value stack. Nothing here changes the closed loop, the no-ROI posture, or any permanent gate.

Cross-references: `AUTONOMOUS-AI-AND-FOUNDING-DATA-DESIGN.md` (design), `TIERED-FEATURE-CATALOG-AND-PMF.md`, `FOUNDING-PRE-REVENUE-OFFER-AND-TIER1-SPEC.md`, `FOUNDING-OFFER-LEGAL-REVIEW.md`, `TIER-AUTORENEW-COMPLIANCE-COUNSEL-NOTE.md`, `TREASURY-SOLVENCY-AND-PAYPAL-SETTLEMENT.md`, `STRICTEST-STANDARD-COMPLIANCE-POLICY.md`, `PRIVACY-POLICY.md`, `FOR-YOUR-ATTORNEY.md`.